

Court No. - 40

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra

Counsel for Respondent :- R. Saxena,S.C.

Hon'ble Vikram Nath,J.

This case is listed under the category of 'Infructuous Cases'. Learned Counsel for the petitioner has not raised any objection to the listing of the case under the said Category.

The Office report is accepted. Petition is accordingly dismissed as infructuous.

Order Date :- 26.3.2014

RPS

Court No. - 26

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra

Counsel for Respondent :- R. Saxena,S.C.

Hon'ble Suneet Kumar,J.

(On C.M. Application No. 154092 of 2014)

Cause shown in the affidavit filed in support of restoration application is sufficient.

Restoration application is allowed. Writ petition is restored to its original file and number.

Order Date :- 14.5.2014

kkm

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Court No. - 26

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra

Counsel for Respondent :- R. Saxena,S.C.

Hon'ble Suneet Kumar,J.

Writ Petition is restored to its original file and number vide my order of date passed on C.M. Application No. 154092 of 2014.

Order Date :- 14.5.2014

kkm

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager &Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K. Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

In Re: Amendment Application

Heard Shri Deepak Kumar Pandey, Advocate, holding brief of Shri Bidhan Chandra Rai, learned counsel for the petitioner. None present for the respondents except learned Standing Counsel.

I have perused the amendment application, which would not change the substratum of the petition.

Hence, amendment application is allowed.

Amendment be carried out on or before 16th July, 2018.

Order Date :- 9.7.2018

LN Tripathi

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager &Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K. Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

List the matter on 30th July, 2018.

Order Date :- 9.7.2018

LN Tripathi

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish
Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K.
Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

A week's time and no more is granted to carry out the
amendment.

List the matter on 14.8.2018.

Order Date :- 31.7.2018

Irshad

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish
Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K.
Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

None present for the petitioner.

None present for the respondents except the counsel for
the State.

Sri Bidhan Chandra Rai has sent illness slip today.

As a last chance to the petitioner, list on 21.8.2018.

Order Date :- 14.8.2018

Irshad

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager &Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K. Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Dr. S.K. Yadav, learned counsel for respondent nos. 2 to 4 would like to file reply to the amended writ petition, which should be filed on or before 07.09.2018.

List the matter on 14.09.2018.

Order Date :- 21.8.2018

S.K.

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish
Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K.
Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Reply to the amended writ petition is taken on record.

A week's time is granted to the petitioner to file rejoinder
affidavit.

List the matter on 24.09.2018.

Order Date :- 14.9.2018

S.K.

Court No. - 2

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish
Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K.
Tripathi,R.K. Tripathi,S.C.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

The office has not sent the file.

Due to personal difficulty, learned counsel for the petitioner is not able to file rejoinder affidavit to the reply to the amended petition.

Two weeks more time is granted.

List on 22.10.2018.

Order Date :- 24.9.2018

DKS

Court No. - 10

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer(Distribution)Asst.General Manager
&Anor.

Counsel for Petitioner :- H.P. Mishra,Bidhan Chandra Rai,Manish
Goyal,Siddharth Singhal

Counsel for Respondent :- R. Saxena,Dr.S.K.Yadav,Mridul Tripathi,P.K.
Tripathi,R.K. Tripathi,S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Pleadings have been exchanged between the parties.

List in second week of January, 2019.

Order Date :- 12.12.2018

SP/

Court No. - 10

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager
Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish
Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr.S.K. Yadav, Mridul Tripathi, P.K.
Tripathi, R.K. Tripathi, S.C.

Hon'ble Mahesh Chandra Tripathi, J.

List on 26.03.2019 as peremptorily.

Order Date :- 1.3.2019

SP/

Court No. - 10

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager
Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish
Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr.S.K. Yadav, Mridul Tripathi, P.K.
Tripathi, R.K. Tripathi, S.C.

Hon'ble Mahesh Chandra Tripathi, J.

Learned Standing Counsel has raised an objection that the matter is not cognizable by this Court. Let the matter be placed before the appropriate Court on 02.04.2019 after seeking fresh report from the Stamp Reporter.

Order Date :- 26.3.2019

SP/

Court No. - 10

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager
Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish
Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr.S.K. Yadav, Mridul Tripathi, P.K.
Tripathi, R.K. Tripathi, S.C.

Hon'ble Mahesh Chandra Tripathi, J.

As per the report of the Stamp Reporter, the matter is cognizable by this Court. List in the next cause list as peremptorily.

Order Date :- 2.4.2019

SP/

Court No. - 12

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr. S.K. Yadav, Mridul Tripathi, P.K. Tripathi, R.K. Tripathi, S.C.

Hon'ble Siddharth, J.

List this case peremptorily on 17.04.2019.

Order Date :- 10.4.2019

Rohit

Court No. - 12

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr. S.K. Yadav, Mridul Tripathi, P.K. Tripathi, R.K. Tripathi, S.C.

Hon'ble Siddharth, J.

With the consent of learned counsel for the parties, list this on 24.4.2019.

Order Date :- 17.4.2019

Vivek Kr.

Court No. - 48

Case :- WRIT - C No. - 14225 of 2004

Petitioner :- Smt. Ranjana Gupta

Respondent :- Executive Engineer distribution asst. General Manager Andanor.

Counsel for Petitioner :- H.P. Mishra, Bidhan Chandra Rai, Manish Goyal, Siddharth Singhal

Counsel for Respondent :- R. Saxena, Dr. S.K. Yadav, Mridul Tripathi, P.K. Tripathi, R.K. Tripathi, S.C.

Hon'ble Siddharth, J.

Heard Sri Bidhan Chandra Rai learned counsel for the petitioner and Sri Dr. S.K. Yadav learned counsel appearing on behalf of all respondents.

This writ petition has been pressed for the following reliefs by the counsel for the petitioner:

"(i) Issue a writ, order or direction in the nature of Certiorari quashing the impugned order dated 12.12.2003, passed by the respondent no. 2, in assessment appeal no. 15 of 2003.

(ii) Issue a writ of Certiorari to quash the impugned bill dated 22.09.2003 and demand notice dated 22.09.2003."

The brief facts of the case are that the petitioner was sanctioned electricity load of 51 H.P. by the KESCO. The Assistant General Manager issued notice alleging that on 06.09.2003 the Cheking Team found theft of electricity. Without any provisional assessment order or reasonable opportunity of hearing as contemplated under Section 126 of the Electricity Act, 2003, the Assistant General Manager asked the petitioner to deposit theft amount of Rs. 7,48,560/-, failing which same will be recovered as arrears of land revenue. In absence of Appellate Authority under Section 127 of the Electricity Act, 2003, the petitioner preferred an appeal by referring to the provisions of Clause 7.20 of U.P. Electricity Supply Code, 2002 and Section 127 of the Electricity Act, 2003 before the Appellate Committee of KESCO. In the meantime, the Assistant General Manager issued demand notice dated 22.09.2003 under Section 3 of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 for recovery of an amount of Rs. 7,48,560/-. The petitioner filed a Writ Petition No. 45506 of 2003 which came up for hearing on 10.11.2003 wherein the High Court directed that in case the petitioner deposits the entire amount due for electricity consumption and

further deposits 50% of the amount of penalty, the recovery proceedings shall be kept in abeyance and power supply will be restored. The petitioner deposited Rs. 2,49,502/- against theft assessment. The petitioner also deposited Rs. 1,48,233/- against electricity consumption. The Appellate Committee of KESCO took decision to prepare assessment bill as per Clause 6.17.2 of Supply Code. Appellate Committee neither adjudicated on the merits of the case nor recorded any finding on the legality of the impugned assessment bill of the Assistant General Manager as well as checking report of KESCO.

By the order dated 12.12.2003 the Appellate Committee has decided the appeal with the observation that the counsel for the petitioner has admitted theft in the premises and is ready to pay the amount due accordingly.

The counsel for the petitioner has submitted that the finding of the Appellate Committee in the operative portion that the counsel for the petitioner admitted the theft in the premises and also the liability of the payment of the dues is factually incorrect. Even if it is admitted that the counsel made such a statement the same is not binding on the petitioner since a wrong concession or admission made by advocate regarding the question of law or fact before court is not binding on his client thus it can be challenged before higher forum. In this regard the counsel for the petitioner has relied upon paragraph 32 judgment in the Case of **Himalayan Coop. Group Housing Society vs. Balwan Singh and others (2015) 7 SCC 373** is quoted below:

"32. Generally, admissions of fact made by a counsel are binding upon their principals as long as they unequivocal; where, however, doubt exists as to a purported admission, the court should be wary to accept such admissions until and unless the counsel or the advocate is authorised by his principal to make such admissions. Furthermore, a client is not bound by a statement or admission which he or his lawyer was not authorised to make. A lawyer generally has not implied or apparent authority to make an admission or statement which would directly surrender or conclude the substantial legal rights of the client unless such an admission or statement is clearly a proper step in accomplishing the purpose for which the lawyer was employed. We hasten to add neither the client nor the court is bound by the lawyer's statements or admissions as to matters of law or legal conclusions. Thus, according to generally accepted notions of professional responsibility, lawyers should follow the client's instructions rather than substitute their judgment for that of the client's instructions rather than substitute their judgment for that of the client. We

may add that in some cases, lawyers can make decisions without consulting the client. While in others, the decision is reserved for the client. It is often said that the lawyer can make decisions as to tactics without consulting the client, while the client has a right to make decisions that can affect his rights."

Learned counsel for the respondents has submitted that once the liability was admittedly to the counsel for the petitioner before the Appellate Committee, the petitioner is bound by the same. The Appellate order is justified and calls for no interference by this court.

After hearing the rival contentions there appears to be procedural non-compliance along with acceptance of concession of counsel for the appellant against the interest of client. This court has been explained the procedure of assessment in the case of **Ashok Kumar and others vs. State of U.P. and others, 2008 (6) ADJ 660 (DB)** in the paragraph nos. 58 to 60, which are quoted below:-

"58. The term "unauthorized use of electricity" is defined in explanation (b) to Section 126 which includes usage of electricity (i) by any artificial means; or (b) by a means not authorised by the concerned person or authority or licensee; or (iii) through a tampered meter; or (iv) for the purpose other than for which the usage of electricity was authorised. Before issuing an assessment notice, therefore, the assessing officer must record its conclusion that the person concerned or any other person benefited has used electricity unauthorizedly in terms as defined in Explanation (b) of Section 126. The Act in respect to the stage of recording of conclusion by assessing officer regarding user of electricity by the person unauthorizedly does not provide specifically for any opportunity of hearing to the person concerned but also simultaneously does not prohibit the same. The allegation of unauthorised use of electricity by a person concerned, as defined in Explanation (b) also covers within its ambit certain acts/omission which constitute an offence under Section 135 of the Act, 2003. Therefore, it is a serious matter and no person can be indicted and held guilty of user of electricity unauthorizedly unless he is given an opportunity of hearing before coming to such conclusion. Where a person is held guilty of unauthorised user of electricity, besides making him responsible for paying penalty in the shape of assessment under the Act, 2003 it also causes stigma on his conduct. He is declared an anti-social person indulging in a serious unsocial activity, by causing loss to the society and country in general and electricity undertaking in particular. Such condemnation of a person would not be permissible on the mere vagaries of the

authority i.e. assessing officer unless such a person is given a fair opportunity of hearing i.e. putting his defence before the said authority. This Court is clearly of the view that before making provisional assessment, the assessing officer, in law, is bound to afford an opportunity to the consumer or person concerned of the allegations of means and ways in which he is said to have unauthorisedly used electricity, and, should be given an opportunity of placing his defence. Thereafter the assessing officer shall record its conclusion with respect to unauthorised use of electricity, to confer upon himself the jurisdiction to issue provisional assessment notice. The object of opportunity at the two stages namely, before arriving at the conclusion of unauthorised use of electricity and before making final assessment are distinct. In the former, it is the very issue whether the consumer is guilty of unauthorised use of electricity or not and in later case it is the quantum of amount which he is required to pay as a compensation and a fiscal preventive measure for committing such irregularity. The first one is the stage of finding the person guilty and later one is the stage of determining extent of monetary liability for compensating electrical undertaking qua the alleged unauthorised use of electricity by such persons. It is only when the proceedings are conducted in the above manner, the assessment made can be held valid and not otherwise.

"59. It is true that judicial cognizance can/should be taken of the fact that theft of electricity has become a serious menace and a social evil not only in the State of U.P. but in the entire country. The electricity has become a necessity in the present day of society and development of society as well as nation cannot be conceived of without electricity. The availability of electricity however is much in deficiency. A huge amount of electricity, consumed by scrupulous persons is causing a serious loss to public revenue hampering and obstructing the development of electrical sector in particular as well as society and nation in general. Therefore, to check theft of electricity and/or unauthorized use of electricity, stern measures are required to be taken. The various provisions of Act, 2003 shows that the legislature is also concerned about it and has take several measures from time to time including making harsh provisions in the statute.

60. However, this by itself would not justify condemnation and indictment of a citizen or a consumer of electricity by holding him guilty of unauthorized use of electricity on the vagaries of the officers of electrical undertaking unless he is disclosed the manner in which he was found using electricity unauthorizedly on inspection by the officer concerned and given an opportunity to explain his case, if any. It is well settled law that no person

can be indicted or condemned without giving a minimal opportunity of hearing. In the case of unauthorized use of electricity found by the assessing officer at any place or the premises etc. or otherwise, the same has to be disclosed to the person concerned giving him an opportunity to put his defence. The principles of natural justice unless excluded by express provision of the Act or by necessary implication cannot be said to be inapplicable when a citizen or person is being indicted of a serious charge, i.e., unauthorized use of electricity, which in some of the cases an offence under Section 135 of Act, 2003."

Further, a perusal of the order of the Appellate Committee shows that in the entire order there is no mention of the concession made by the counsel. No specific terms of concession have been mentioned in the body of the order. Only in the operative portion of the order concession of counsel has been recorded and appeal has been accordingly decided. The petitioner disputes giving any such instruction to her counsel to make concession before the Appellate Committee in this writ petition. Concession has frustrated all her efforts made for proper assessment by the respondents.

In the case of Himalayan Coop. Group Housing Society (Supra) the Apex Court has held in paragraph 21 that where concession is made by the counsel for a party before court, court should take a precaution to ascertain whether client has authorised the counsel to make such concession. In the present case concession of the counsel was clearly against the interest of the client and therefore Appellate Committee should have been cautious in accepting the same on the first opportunity.

From the pleadings on record it appears that the demand notice and bill dated 22.09.2003 directing the petitioner to deposit Rs. 7,48,560/- were issued by the Assistant General Manager (Small Power) KESCO, respondent no. 1, without any show cause notice regarding allegation of theft/provisional assessment or final assessment in violation of Section 126(3) of the Electricity Act, 2003, and deserves to be quashed.

In view of the above consideration the order dated 12.12.2003 passed by the Appellate Committee and the demand notice and bill dated 22.09.2003 issued by respondent no. 1 are hereby quashed.

The respondent no. 1 shall provide dual opportunity of hearing, one against unauthorised use of electricity and then second opportunity by issuing a provisional assessment order to the petitioner, if the authority is not satisfied by the reply of petitioner to his reply to first notice of unauthorised use of

electricity. After opportunity of objection to the petitioner to the provisional assessment order it shall pass final assessment order as per the procedure explained by this court in the case of Ashok Kumar (Supra) within a period of two months from the date of production of certified copy of this order.

This writ petition is **allowed**.

Order Date :- 24.4.2019

Rohit